JUDGMENT SHEET

IN THE ISLAMABAD HIGH COURT,
ISLAMABAD

R.F.A. No. 221 of 2015

Abdul Malik
Vs.
Iqbal Ahmed and others

Appellant by	:	**Mr. Rehan ud Din Khan Golra, Advocate.**
Respondents by	:	**Syed Wahaj ul Hassan Taqvi, Advocate for the Respondents Nos. 1 and 2.** **Respondents Nos. 2 to 5 ex-parte.**
Date of hearing	:	**12.12.2024.**

SAMAN RAFAT IMTIAZ, J.:-

1. The Appellant [Abdul Malik] has preferred the instant Appeal to challenge the Judgment and Decree dated 28.10.2015 ("**Impugned Judgment and Decree**") whereby the learned Civil Judge 1st Class (West) Islamabad ("**Trial Court**") has dismissed the Suit for Declaration, Cancellation of Documents, Injunction and Recovery of Money **("Suit")** filed by the Appellant.

2. The facts of the case as per the Memo of Appeal are that the Respondent No. 1/Defendant No. 1 [Iqbal Ahmed] was allotted plot bearing No. 447 situated at Sector I-8/2, Islamabad measuring 356 square yards **("Suit Plot")** by the Federal Government Employees Housing Foundation vide Letter No. F. No. 10(5)/94-PMS-27/94/HF dated 25.7.1996 and subsequently received possession thereof on 30.7.1996. The Respondent No. 1/Defendant No. 1 sold the Suit Plot by way of an Agreement to Sell dated 30.9.1998 **("Sale Agreement")** to the Appellant and received the entire sale consideration of Rs. 2,600,000/- (Rupees Twenty Six Lac Only) vide three different bank demand drafts dated 17.7.1998, 25.9.1998 and 25.9.1998. An irrevocable General Power of Attorney dated 1.10.1998 was executed

by the Respondent No. 1/Defendant No. 1 in the name of the Appellant which was duly registered in the office of the Sub-Registrar, Islamabad. The Respondent No. 1/Defendant No. 1 also swore an Affidavit dated 1.10.1998 that the Appellant constructed a house on the Suit Plot at considerable cost. The Appellant was living at Karachi and asked the Respondent No. 2/Defendant No. 2 [Muhammad Muslim] to let out the said house so that the Appellant can earn profit and the Appellant has been showing the said house in the Income Tax Return as well as declaring the same in other applicable declarations. The Respondent No. 1/Defendant No. 1 taking advantage of the absence of the Appellant and in collusion with the Respondent No. 2/Defendant No. 2 arbitrarily canceled the irrevocable General Power of Attorney and also did not pay the rent of house. The Appellant sent a legal notice but in vain. The Appellant having no other remedy available filed the Suit which was dismissed vide the Impugned Judgment and Decree. Being aggrieved of the Impugned Judgment and Decree, the Appellant has filed the instant Regular First Appeal.

3. The learned counsel for the Appellant submits that the Appellant was a *benami* owner as he purchased the Suit Plot from the Respondent No. 1/Defendant No. 1 by way of the Sale Agreement which was produced as Mark-P4 along with a Construction Agreement dated 1.10.1998 produced as Mark-P5 and all the conditions thereunder were fulfilled by the Appellant of which considerable proof was produced in evidence by the Appellant despite which the learned Trial Court dismissed the Suit. He further submits that the Cancellation of General Power of Attorney (Irrevocable) dated 29.1.2023 of which the Appellant sought cancellation is not on the record as it was not available with the Appellant.

4. On the other hand the learned counsel for the Respondents Nos. 1 and 2/Defendants Nos. 1 and 2 submits that the Respondent No. 1/Defendant No. 1 never entered into the Sale Agreement with the

Appellant and the actual purchaser was Mr. Mahmood Shah Khan who could not enter into an agreement with the Respondent No. 1/Defendant No. 1 due to his ailing health and instead directed the Appellant to enter into agreement with the Respondent No. 1/Defendant No. 1 on his behalf. He submits that after full payment was received the Suit Plot has been transferred by the Respondent No. 1/Defendant No. 1 in the name of wife of Mr. Mahmood Shah Khan as per his direction which is in the knowledge of the Appellant who nevertheless did not implead the said two persons as a party. However, admittedly there is no proof of the submissions made by the leaned Counsel for the Respondent No. 1/Defendant No. 1 on the record as the matter was decided ex-parte against the Respondent No. 1/Defendant No. 1. However the learned counsel for the Respondents Nos. 1 and 2/Defendants Nos. 1 and 2 argues that perusal of the entire plaint of the Appellant shows that nowhere had he asserted his claim based on *benami* transaction.

5. Arguments advanced by the learned counsel for the parties have been heard and record examined with their assistance.

6. The examination of the plaint shows that the Appellant's claim was not based on *benami* transaction. Even otherwise a *benami* transaction is entirely different from the one agitated by the Appellant in this case in as much as a *benami* transaction involves at least three parties i.e. seller, ostensible owner, and beneficial owner whereas in the instant case the claim of the Appellant was that he purchased the Suit Plot from the Respondent No. 1/Defendant No. 1 and as such his claim that the Appellant is the *benami* owner and the Respondent No. 1/Defendant No.1 is his ostensible owner is contrary to the principles governing a *benami* transaction.

7. The relief claimed for by the Appellant was essentially a declaration that he is the owner of the Suit Plot which the learned Trial Court has rightly decided that no title document was produced by the Appellant as an agreement to sell is not a title document. At the most

the Appellant could have filed a suit for specific performance of the Agreement to Sell if the grievance of the Appellant was that he has fulfilled his end of the bargain as per the Sale Agreement and it is the Respondent No. 1/Defendant No. 1 who is failing to perform his obligations thereunder. However, no such suit was filed.

8. Moreover, admittedly such Sale Agreement was never produced in evidence and only a photocopy was produced as Mark-P4. This Court has on multitude of occasions passed orders against marked documents as there is no concept of marked documents in the Code of Civil Procedure, 1908. Since no legal sanctity is attached to marked documents the said Agreement cannot be considered by this Court.

9. The Appellant has also prayed for cancellation of the Cancellation of General Power of Attorney (irrevocable) dated 29.1.2003 and for declaration that the same cannot be cancelled. However admittedly such document was never produced in evidence and as such the learned Trial Court has rightly declined to grant the relief claimed for in such regard.

10. For the foregoing reasons, no infirmity or illegality has been pointed out in the findings of the learned Trial Court and as such the Impugned Judgment and Decree is upheld. Resultantly the instant Appeal, being devoid of any merits, is hereby **dismissed**.

(SAMAN RAFAT IMTIAZ)
JUDGE

ADNAN